

B. White

Date: 9/18/2013

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE AMENDING SECTION 9.16.070(A), SALE OF TOBACCO TO PERSONS UNDER THE AGE OF EIGHTEEN YEARS PROHIBITED, OF CHAPTER 9.16, OFFENSES BY OR AGAINST MINORS, OF CHAPTER 9, PUBLIC PEACE AND WELFARE, OF THE CHEYENNE CITY CODE, PERTAINING TO ELECTRONIC CIGARETTES."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That Section 9.16.070(A), Sale of tobacco to persons under the age of eighteen years prohibited, of Chapter 9.16, Offenses By or Against Minors, of Title 9, Public Peace and Welfare, of the Cheyenne City Code, pertaining to electronic cigarettes, is hereby amended to read as follows:

9.16.070. Sale of tobacco to persons under the age of eighteen years prohibited.

A. As used in Sections 9.16.070 through 9.16.090:

1. "Tobacco products" means any substance containing tobacco leaf, OR ANY PRODUCT DERIVED FROM TOBACCO THAT CONTAINS NICOTINE, including, but not limited to, cigarettes, ELECTRONIC CIGARETTES, cigars, pipe tobacco, snuff, chewing tobacco or dipping tobacco;

2. "Vending machine" means any mechanical, electric or electronic self-service device which, upon insertion of money, tokens, or any other form of payment, dispenses tobacco products; ~~and~~

3. "Retailer" means a business of any kind at a specific location that sells tobacco products to a user or consumer; AND

4. "ELECTRONIC CIGARETTE" MEANS A PRODUCT THAT EMPLOYS ANY MECHANICAL HEATING ELEMENT, BATTERY OR ELECTRONIC CIRCUIT, REGARDLESS OF SHAPE OR SIZE, THAT CAN BE USED TO DELIVER DOSES OF NICOTINE VAPOR BY MEANS OF HEATING A LIQUID NICOTINE SOLUTION CONTAINED IN A CARTRIDGE OR OTHER DELIVERY SYSTEM.

Section 2. This ordinance shall be in full force and effect upon approval and publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

Richard L. Kaysen, Mayor

(SEAL)

ATTEST:

Carol Intlekofer, City Clerk

Publish: Wyoming Tribune-Eagle

Date: _____